# 23STCV15284 23STCV15284

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-08-06

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Case Number: 23STCV15284 Hearing Date: August 6, 2026 Dept: 514

Donegan v. Llaneras

23STCV15284

Plaintiffs' Motion for Monetary or Terminating Sanctions Against IDefendant Tharsys Da Silva interrogatories)

Plaintiffs' Motion for Monetary or
Terminating Sanctions Against Defendant Samuel Luke Llaneras (interrogatories)

Plaintiffs' Motion for Monetary, Evidence,
or Terminating Sanctions Against Defendant Tharsys Da Silva (requests for production)

Plaintiffs' Motion for Monetary, Evidence,
or Terminating Sanctions Against Defendant Samuel Luke Llaneras (requests for production)

Tentative

The motions are granted in part and denied in part.

Background

On June 30, 2023, Andrew Donegan, Donegan Capital LLC, and Travis Scott (collectively "Plaintiffs") filed a complaint against Samuel Luke Llaneras, Christina Llaneras, Tharsys Da Silva, and Does 1 through 100 for (1) breach of contract, (2) breach of good faith and fair dealing, (3) common count, (4) conversion, (5) unjust enrichment, (6) fraud, (7) fraudulent misrepresentation, and (8) declaratory relief, all arising out of transaction to purchase secondary market luxury watches. (Comp., ¶ 12.)

On November 20, 2023, the Court, at the request of Plaintiffs, dismissed Christina Llaneras.

On November 29, 2023, Samuel Luke Llaneras and Tharsys Da Silva (collectively "Defendants") filed an answer.

On April 30, 2026, the Court granted Plaintiffs' motions to compel Defendants Llaneras and Da Silva to respond to Special Interrogatories (Set One) and Supplemental Request for Production of Documents (Set One).

On June 1, 2026, Plaintiffs filed these four motions for discovery sanctions: (1) Motion for Monetary or Terminating Sanctions Against Defendant Silva; (2) Motion for Monetary or Terminating Sanctions Against Defendant Llaneras; (3) Motion for Monetary, Evidence, or Terminating Sanctions Against Defendant Silva; and (4) Motion for Monetary, Evidence, or Terminating Sanctions Against Defendant Llaneras.

Two of the motions were set for hearing on August 6. The other two motions were set for hearing on August 3, and the Court continued the hearings to August 6.

No opposition has been filed.

Trial is set for December 1, 2026.

Legal Standard

When a plaintiff fails to obey an order compelling answers to interrogatories, "the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to, that sanction, the court may impose a monetary sanction under Chapter 7." (Code Civ. Proc., § 2030.290, subd. (c).)

When a plaintiff fails to obey an order compelling responses to requests for production, "the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to, that sanction, the court may impose a monetary sanction under Chapter 7." (Code Civ. Proc., § 2031.300, subd. (c).)

In Chapter 7 of the Civil Discovery Act, section 2023.030 provides for monetary, evidence, issue, and terminating sanctions for any "misuse of the discovery process," "[t]o the extent authorized by the chapter governing any particular discovery method or any other provision of this title." A "misuse of the discovery process" is defined to include (among other things) failing to respond or to submit to an authorized method of discovery; making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to a discovery request; disobeying a court order to provide discovery; and making or opposing, unsuccessfully, a motion to compel without substantial justification. (Code Civ. Proc., § 2023.010, subds. (d)-(h).)

The Civil Discovery Act provides for an escalating and "incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination." (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604.) Discovery sanctions should be appropriate to and commensurate with the misconduct, and they "should not exceed that which is required to protect the interests of the party entitled to but denied discovery." (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992.) "If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse." (Ibid.; see also, e.g., Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.)

Terminating sanctions should be used sparingly. (Doppes, supra, 174 Cal.App.4th at p. 992; R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal. App. 4th 486, 496.) "Although in extreme cases a court has the authority to order a terminating sanction as a first measure, a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective.” (Lopez, supra, 246 Cal.App.4th at p. 604.) But where discovery violations are “willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (Doppes, supra, 174 Cal.App.4th at p. 992.) Repeated and willful violations of discovery orders that prejudice the opposing party may warrant a terminating sanction. (Creed-21 v. City of Wildomar (2017) 18 Cal.App.5th 690, 702; Los Defensores, Inc. v. Gomez (2014) 223 Cal.App.4th 377, 390; Biles v. Exxon Mobil Corp. (2004) 124 Cal.App.4th 1315, 1327; Lang v. Hachman (2000) 77 Cal.App.4th 1225, 1246; Collisson X Kaplan v. Hartunian (1994) 21 Cal.App.4th 1611, 1617-1622.)

The primary purpose of discovery sanctions is to obtain compliance with the Civil Discovery Act and the Court’s orders. It is not to punish. (Newland v. Super. Ct. (1995) 40 Cal.App.4th 608, 613; Ghanooni v. Super Shuttle of Los Angeles (1993) 20 Cal.App.4th 256, 262.) A discovery sanction should not create a “windfall” for a party or place a party in a better position than it would have been if the opposing party had simply complied with its obligations under the Court’s orders and the Civil Discovery Act. (Rutledge v. Hewlett-Packard Co. (2015) 238 Cal.App.4th 1164, 1194; see also 2 Weil & Brown, California Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026), ¶¶ 8:2214-2220.)

It is “never justified” for a court to impose a terminating sanction “solely because of a failure to pay a monetary discovery sanction.” (Newland, supra, 40 Cal.App.4th at p. 615.)

Discussion

In February 2026, Plaintiffs served Defendants with Special Interrogatories (Set One) and Supplemental Request for Production of Documents (Set One). Defendants did not respond.

On April 30, 2026, the Court granted Plaintiffs’ motions to compel and ordered Defendants to serve their responses by May 20,

2026. within twenty days.

Defendants have not served their responses. (DiRiso Decls., ¶ 6.)

Motions for Sanctions for the Failure to Respond to Special Interrogatories (Set One)

In the Special Interrogatories (Set One) served on Defendants, Defendants were asked to state all facts supporting 30 of the affirmative defenses in Defendants' answer.

Plaintiffs now move for monetary, evidence, and terminating sanctions against each Defendant.

The request for monetary sanctions is granted. Defendants have failed to comply with their obligations under the Civil Discovery Act; Defendants have further compounded this failure by refusing to comply with an Order of the Court. This is serious misuse of the discovery process. The Court awards sanctions against each Defendant in the requested amount of $387.50.

The request for an evidence sanction is also granted. Defendants' serious misuse of the discovery process has substantially and prejudicially interfered with Plaintiffs' ability to prepare for trial, which is scheduled to begin in less than four months. The Court orders the evidence sanctions requested by Plaintiffs, as they are carefully crafted to the scope of the discovery responses that Defendants have refused to provide.

The request for terminating sanctions is denied. Although the Defendants' misuse of the discovery process is severe, the discovery that Defendants have failed to provide relates to affirmative defenses, and granting the evidence sanctions requested will substantially or entirely remedy the prejudice to Plaintiffs. A terminating sanction would be, at this time, an inappropriate windfall for Plaintiffs.

Motions for Sanctions for the Failure to Respond to Supplemental Request for Production of Documents (Set One)

Plaintiffs also move for monetary and terminating sanctions against each Defendant for the failure to respond to Supplemental Request for Production of Documents (Set One).

The request for monetary sanctions is granted. Defendants have failed to comply with their obligations under the Civil Discovery Act; Defendants have further compounded this failure by refusing to comply with an Order of the Court. This is serious misuse of the discovery process. The Court awards sanctions against each Defendant in the requested amount of $387.50.

The request for terminating sanctions is denied. Although the Defendants' misuse of the discovery process is severe, the discovery that Defendants have failed to provide relates only to the supplemental production of documents. A terminating sanction would be, at this time, an inappropriate windfall for Plaintiffs.

Conclusion

The Court GRANTS IN PART and DENIES IN PART the four motions of Plaintiffs Andrew Donegan, Donegan Capital LLC, and Travis Scott for discovery sanctions against Defendants.

The Court ORDERS that, as an evidence sanction, Defendant Samuel Luke Llaneras is prohibited from presenting evidence at or before trial on the following matters: (1) Defendants' contention that Plaintiffs did not justifiably rely on any representation of any Defendants; (2) Defendants' contention that they did not make a false representation to the Plaintiffs; (3) Defendants' contention that they did not make a representation to Plaintiffs with knowledge of its falsity, or recklessly, or without reasonable grounds for believing its truth; (4) Defendants' contention that they did not intend to defraud Plaintiffs; and (5) Defendants' contention that they did not have knowledge of and/or agreed to the objective and/or course or action of anyone else to injure Plaintiffs.

The Court ORDERS that, as an evidence sanction, Defendant Tharsys Da Silva is prohibited from presenting evidence at or before trial on the following matters: (1) Defendants' contention that

Plaintiffs did not justifiably rely on any representation of any Defendants; (2) Defendants' contention that they did not make a false representation to the Plaintiffs; (3) Defendants' contention that they did not make a representation to Plaintiffs with knowledge of its falsity, or recklessly, or without reasonable grounds for believing its truth; (4) Defendants' contention that they did not intend to defraud Plaintiffs; and (5) Defendants' contention that they did not have knowledge of and/or agreed to the objective and/or course or action of anyone else to injure Plaintiffs.

The Court ORDERS Defendant Samuel Luke Llaneras to pay monetary sanctions under the Civil Discovery Act in the total amount of $775 ($387.50 per motion multiplied by two motions) to Plaintiffs, through counsel, by no later than August 27, 2026.

The Court ORDERS Defendant Tharsys Da Silva to pay monetary sanctions under the Civil Discovery Act in the total amount of $775 ($387.50 per motion multiplied by two motions) to Plaintiffs, through counsel, by no later than August 27, 2026.

The Court DENIES Plaintiffs' requests for terminating sanctions.

The moving parties are ordered to give notice.